Memorandum of Association
West Bengal Committee of Institutes of Physical Education
Registration No. : S/IL/34083 of 2005-06

1. Name of the Society: "West Bengal Committee of Institutes of Physical Education", hereinafter referred as the "Committee".

2. The Registered office of the Society shall be situated at:

Mahamaya Road,
P.O. HIJALPUKURIA
Dist. North 24 Parganas, 743271

3. The objects for which the society is established are:

Aim: To steer the committee steadfastly towards building the Society and the Nation through all its intra and extra-institutional programmes to develop strong, healthy and fit citizens with the desired social qualities.

Objectives :

i) To recommend coordination and uniformity among the institutions as far as practicable in the matter of :

(a) Redesigning of curriculum
(b) reshaping objective admission procedure
(c) evolving examination patterns in conformity with the new curriculum.

ii)To foster professional growth and inter-institutional fraternity.

iii) To arrange exchange of teachers for seminars, lectures, extension lectures etc.

iv) To provide expertise regarding the discipline and this profession.

v) To arrange extramural programmes rotationally at all the Physical Education institutions.

vi) To organise Inter-institutional meets.

vii) To explore employment opportunities. ·

viii) To publish "Journal"/ "Bulletin" for providing a forum for new ideas.

Oath: The objectives of the society will always remain restricted within the meaning of Section 4(2) of the WBSR Act 1961. The income and properties of the society whatsoever derived or obtained shall be applied only for the objects and promotion of the Society and nothing shall be divided amongst the members by way of profit.

The West Bengal Society Registration Act 1961
Regulations of the West Bengal Committee of the Institute of Physical Education (WBCIPE)

Unless the context otherwise requires, words and expressions contained in these Regulations shall bear the same meaning as in the W.B. Societies Regulation Act 1961 or any statutory modification thereof the society.

Membership

1. Admission:

(a) The signatories of the Memorandum of Association and the Office Bearers of the Executive Committee of the Society shall be the first members of the society.

(b) The Executive Committee may admit to membership any person of any cast, creed or sex who is/was associated with any Physical Education Institution/General/Degree Colleges/B. Ed College as a full-time regular/contractual teacher and agrees in writing to be bound by the Memorandum of Association and regulations of the Society and who, at the option of the Executive Committee, will be interested in the advancement of the objects of the society.

Be it noted that the power to admit members is the sole and absolute power of the Executive Committee and the Executive Committee may refuse to admit any person as a member without assigning any reason therefore.

2. Types of Members:

a) i) **Institutional Members:** All the physical education institutions (here institution means Department of Physical Education of a University and Colleges of the State of West Bengal offering Graduate/Post-graduate programmes in physical education) shall be the members of WBCIPE and shall be represented by the Head of the institution or his/ her nominee.

ii) **General Membership:** Any full-time regular or contractual teacher working in Physical Education institutions offering the programmes as mentioned earlier may obtain, if he/she so desires, membership of WBCIPE by paying the requisite fees as per this constitution from time to time.

iii) **Life Membership:** Any retired teacher of any Physical Education Institution may obtain, if he/she so desires, a Life Membership of WBCIPE by paying the requisite fees as per this constitution from time to time.

iv) Associate Membership: Any full-time regular or contractual teacher working in any General Degree Colleges/B.Ed College may obtain, if he/she so desires, Associate Membership of WBCIPE by paying requisite fees as per this constitution from time to time.

v) **Co-opted Membership:** Any professional expert or any friend of the profession from allied areas may be co-opted by the General Body in the Annual General Meeting of WBCIPE, not more than three members in each term, who may enrich the leadership for the academic and professional field.

vi) Transfer of Membership: If a general member is transfers of willfully changes his/her service from any Physical Education Institution to any General Degree College/B. Ed college, then his/her category of membership will change from General Membership to Associate Membership and again conversely, if any associate member is transferred or willfully changes his/her service from General Degree College/B. Ed college to any Physical Education College, then his/her category of membership will change from Associate Membership to General Membership.

b) Membership fees:

i) Annual fee for General Membership:

a) Full-time regular Teacher: Rs. 600/-

b) Full-time contractual Teacher: Rs. 300/-

ii) Annual fee for Associate Membership:

a) Full-time regular Teacher: Rs. 600/-

b) Full-time contractual Teacher: Rs. 300/-

iii) Life Membership: Rs. 5000/-

3. Cessation of Membership

Any member shall cease to be a member- (a) on the acceptance of his or her registration from membership, (b) on his/her becoming insane or insolvent, (c) on his/her conviction of any offence in connection with the formation, promotion, management or conduct of affairs of Society or a body corporate or of any offence involving moral turpitude.

Apart from this, general members and associate members whose dues remain unpaid for consecutive two/three years shall be deemed to be defaulters and their membership may be cancelled if not otherwise decided by the **Executive Committee.** Defaulter members shall not be allowed to enjoy any privilege of the committee, nor shall they have the power of voting in any meeting of the committee or any of its sub-committees. They may be allowed to continue their membership with all privileges on submission of a written application and on payment of arrear fees, subject to the approval of the same by the Executive Committee.

4. **Register of Members:** The society shall maintain a Register of Members containing the names, addresses and their occupations, the date of admission and of cessation of membership. The Register shall be kept with the secretary and will be kept open for inspection by the members of the Society on requisition. All entries required to be made therein shall be entered within a period of 15 days.

5. Rights and Obligations of Members:

Any General or Associate or Life member of the Committee shall have the right-

i) to elect and to be elected in any election of the Committee, provided his/her membership is more than 2 years standing.

ii) to submit suggestions for discussion to the Executive Committee/Sub-committee on any matter relating to the Committee.

iii) to inspect the accounts and the proceedings of the meetings of the Committee on appointment with the Secretary, to receive all concerned notices or circular letters issued and bulletins or journals published on payment, if priced.

iv) to pay his/her subscription within the prescribed time.

v) to attend all the concerned meetings of the Committee and Sub-committees and to express opinions with casting of a vote, if needed.

vi) to requisition a general Meeting (to be called a requisitioned meeting) provided the requisition notice is signed by not less than one-third of the total valid members of the Committee. Defaulter members shall not be eligible to sign a requisition notice.

6. **General Body:** There shall be a General Body comprising all the members (all categories) of the Committee, also referred to as the G.B. The General Body shall meet at least once a year.

7. Expulsion and Removal: Frequent actions of any member if found by the Executive Committee as detrimental to the interest and violating the rules and regulations of the Committee, he/she may be after due enquiry, be censured, suspended or expelled from the membership by the Executive Committee. In this case, the Executive Committee shall first serve the member concerned with a 'show cause' notice showing therein the charges framed and ask him/her to submit his/her statement or defense within a month. On receipt of the explanation, the Executive Committee shall have the power to take suitable action against such member after allowing him/her to defend his/her case. If no reply to the show cause notice is received within a month, the Executive Committee may take an ex-parte decision.

For any act of expulsion or termination, no such member shall be entitled to prefer any claim for compensation or damage even if proved on the subsequent date that such act of expulsion or termination was wrongful and/or unlawful.

8. Executive committee:

The Executive Committee shall comprise of-

i) Institutional members to be represented by Head of the institution or his/ her nominee.

ii) Not more than five members from all categories other than the institutional Members to be elected by the General Body in the AGM.

iii) Not more than three members may be co-opted in the Annual General Meeting from amongst the Retired Physical Educationists or professional expert members or any friend of the profession from allied areas.

9. After the E.C. is constituted, the following office Bearers shall be elected.

a) The post of President is to be filled from amongst any of the senior members of the Executive Committee but elected in the Annual General Meeting by the General Body

b) The working President is to be filled from among the category (i) institutional members but elected in the Annual General Meeting by the General Body.

c) Two posts of Vice-Presidents from all category of members to be elected by the General Body in the Annual General Meeting.

d) The General Secretary to be elected from amongst the members of category No. (i) institutional members by the General Body in the AGM preferably from some other institutions than to which the President, Working President and Vice Presidents belong.

e) Two Assistant Secretaries to be elected from amongst the members of category no. (ii) General members by the General Body in the AGM.

f) The Treasurer to be elected from amongst the category (ii) General members by the General Body in the AGM.

10. Functions of Office Bearers:

a) The President shall preside over all meetings of the General Body as well as the Executive Committee. He/She, along with the Secretary, shall normally represent the Committee in all discussions with other bodies, and if necessary, the Executive Committee may include other members in any such representation.

b) The Working President shall function only when the President is unable to discharge his/her obligations for specific reasons and periods. He/She shall, during that time, have all the powers of the President, and utilise the powers with the consent of the President.

c) One of the Vice Presidents shall in the absence of the President or the Working President preside over the meetings of the General Body as well as the Executive Committee and shall also perform other functions as the President in such cases.

d) The Secretary shall convene in consultation with the President and his/her absence with the Working President and in his/her absence with the Vice-Presidents all meetings of the General Body and Executive Committee. He/She shall make all correspondence on behalf of the Committee and perform all functions as per policy adopted by the Committee.

He/she, along with the President (and in his/her absence the Working President and in his/her absence Vice-Presidents or the senior-most member present), normally represents in all discussions with other bodies. If necessary, other members may also be included by the E.C. in such representation.

e) One of the Assistant Secretaries shall in the absence of the Secretary, convene in consultation with the President and in his/her absence, with the working President and in his/her absence with the Vice-Presidents all meetings of the General Body and Executive Committee. He/She shall make under such circumstances all correspondence on behalf of the committee and perform all functions as per policy adopted by the Committee.

f) The Treasurer shall assist the Secretary in all his/her financial functions and shall keep the accounts of the Committee. In the absence of the Secretary, he/she shall assist the Asstt. Secretary in all the financial functions.

No office Bearer shall normally hold office in a post for more than two successive terms. The position of the Secretary is rotated as often as possible among member institutions.

The Executive Committee shall meet as and when necessary, but not less than thrice in a year. The E.C. May make such rules and regulations as may be considered necessary in the interest of the Committee and the profession. The rules and regulations may be altered or modified by resolutions passed in a General Body Meeting by the majority of the members present. The

E.C. may form Sub-committees as and when necessary, normally with the following composition:

President, Secretary and members nominated by E.C.

g) Secretariat: There shall be a secretariat composed of all the office-bearers to meet emergencies. The secretariat may meet as and when necessary and follow the 15 (c) rule for notice.

The Secretariat shall report its actions in the next E.C. meeting for approval.

11. Tenure: The tenure of the General Body as well as the E.C. shall be three years, The General Body and the E.C. shall be reconstituted every third year at the Annual General Meeting.

12. Accounting Year: The financial year of the Committee shall be from April of a year to March of next year.

13. Books of Accounts and maintenance of Audit of Accounts: The Committee shall maintain Books of Accounts as required under Section 15(1), (1)(b) of the Society Registration Act. The Accounts shall be audited by a duly qualified auditor as stated in Section 15(2) of the said Act, and the same shall be kept open for inspection by the members of the society on requisition.

14. Advisory Body: An Advisory Body of WBCIPE is to be formed with distinguished retired Physical Education Teachers/distinguished educationists from allied areas to be nominated and approved by the General Body in the AGM.

15. Bank Operation: The Secretary of the Executive Committee jointly either with the President or the Treasurer will operate the bank account.

14(a). Safe custody of the property: The E.C. of the Society shall be responsible for the safe custody of the funds and assets of the Society. Funds of the Society shall be kept at any nationalized bank.

16. Notice for meeting and quorum:

a) Fifteen days' notice will be required for a G.B. meeting, except for a requisition meeting where seven days' notice will do.

b) Seven days' notice will be required for a meeting of the E.C. In case of emergency E.C. meeting may be convened with a three days' notice with the approval of the President.

c) Three days' notice will be required for a Sub-committee meeting whereas in emergency situations 24 hours' will suffice.

d) For the Annual General Meeting, fifteen days' notice will be required.

e) 1/3rd of members personally present shall constitute a quorum for the aforesaid meetings and if a quorum is not present within 30 minutes of the time, members present shall adjourn the meeting.

GENERAL MEETINGS

Annual General Meeting:

Notice: The Secretary shall annually call the Annual General Meeting giving at least 15 days' notice to all the members, The notice shall contain the place, date and time of the meeting.

Agenda: The business to be transacted at the AGM shall be (a) to confirm the minutes of last AGM and of the Special General Meeting if any, (b) to adopt with or without modification the report of the working of the Executive Committee for the previous year, (c) to consider and

pass audited accounts of the Committee for the previous year, (d) to appoint a qualified auditor or auditors, (e) to transact such business as may be fixed by the E.C., (f) to transact such other business as may be brought forward by giving 15 days' previous notice from any members, (g) to conduct general election when due.

Quorum of the Meeting:

1/3rd of the members personally present at the commencement of the meeting shall constitute a quorum.

Special General Meeting:

The E.C. may convene a Special General Meeting at any time in view of the urgency of the matter. At least 7 days' notice shall be given to every member for a Special General Meeting.

Suit & Legal Proceedings:

All suits and legal proceedings by or against the Committee shall be in the name of the Secretary or such person as shall be appointed by the Executive Committee.

Alteration of Memorandum and Regulation:

The Memorandum and Regulations may be altered, modified, rescinded or added to by special resolutions passed by 3/4th members in a General Body meeting called for the purpose.

The E.C. shall have powers to make, alter, modify or rescind such Bye-laws and Rules as may be considered necessary in the interest of the smooth functioning of the Committee.

Dissolution of Committee

Subject to the provisions of Sections 24 and 27 of the West Bengal Society Registration Act, 1961 or any Statutory modification thereof, the Committee may be dissolved by a resolution to that effect passed by 3/4th members of the Committee at a General Body meeting. The said meeting shall also decide the manner of disbursement of the funds and assets of the Association, if any, after dissolution.